

# GENERAL LIABILITY POLICY

INSURED BY:

Accelerant National  
Insurance Company





## COMMON POLICY DECLARATIONS

|                                                                                                                                                                                                                          |  |                                                                                                 |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-------------------------------------------------------------------------------------------------|--|
| <b>COMPANY NAME AREA</b><br>Accelerant National Insurance Company<br>400 Northridge Drive<br>Suite 800<br>Sandy Springs, GA 30350                                                                                        |  | <b>PRODUCER NAME AREA</b><br>LIPCA Inc<br>3042 Old Forge Drive Suite A<br>Baton Rouge, LA 70808 |  |
| NAMED INSURED: Clements Pest Control Services, LLC, CLEMENTS P C SERVICES INC, Clements Pest Control Services Southwest, LLC, Clements Pest Control Services - Orange, LLC, Clements Pest Control Services - Martin, LLC |  |                                                                                                 |  |
| MAILING ADDRESS: 4036 43rd Avenue<br>Vero Beach FL 32960                                                                                                                                                                 |  |                                                                                                 |  |
| POLICY PERIOD: FROM 9/27/2025 TO 9/27/2026 AT 12:01 A.M. STANDARD TIME AT YOUR MAILING ADDRESS SHOWN ABOVE                                                                                                               |  |                                                                                                 |  |

|                      |                                          |
|----------------------|------------------------------------------|
| BUSINESS DESCRIPTION | Pest Control Operations and/or Lawn Care |
|----------------------|------------------------------------------|

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

| THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT. |                                |
|-----------------------------------------------------------------------------------------------------------------------------------|--------------------------------|
| General Liability                                                                                                                 | <b>PREMIUM</b><br>\$ 32,206.00 |
| <b>Broker Fees</b>                                                                                                                | \$ 0.00                        |
| <b>Policy Fees</b>                                                                                                                | \$ 0.00                        |
| <b>FIGA Assessment</b>                                                                                                            | \$ 322.06                      |
| <b>TOTAL:</b>                                                                                                                     | \$ 32,528.06                   |
| Premium shown is payable: \$ 32,206.00 at inception. \$ _____                                                                     |                                |

|                          |                                                                                    |
|--------------------------|------------------------------------------------------------------------------------|
| Countersigned: 9/17/2025 |  |
| (Date)                   | (Authorized Representative)                                                        |

## **POLICY FORMS AND ENDORSEMENTS SCHEDULE**

| <b>ENDORSEMENT #</b> | <b>DESCRIPTION - Purpose</b>                                |
|----------------------|-------------------------------------------------------------|
| IL 00 17 11 98       | Common Policy Conditions                                    |
| IL 00 21 09 08       | Nuclear Energy Liability Exclusion Endorsement (Broad Form) |
| IL P 001 01 04       | OFAC Notice                                                 |
| IL 09 35 07 02       | Exclusion of Certain Computer-Related Losses                |
| S SOS 00001 07 22    | Service of Suit                                             |
| N AIL 00005 03 22    | ANIC Signature Page                                         |
| CG P 011 05 09       | Recording and Distribution of Material or Information       |

## COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

### A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
  - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
  - b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

### B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

### C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

### D. Inspections And Surveys

1. We have the right to:
  - a. Make inspections and surveys at any time;

- b. Give you reports on the conditions we find; and
- c. Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
  - a. Are safe or healthful; or
  - b. Comply with laws, regulations, codes or standards.

3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

### E. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

### F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT**

**(Broad Form)**

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTOMOBILE COVERAGE PART  
COMMERCIAL GENERAL LIABILITY COVERAGE PART  
FARM COVERAGE PART  
LIQUOR LIABILITY COVERAGE PART  
MEDICAL PROFESSIONAL LIABILITY COVERAGE PART  
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART  
POLLUTION LIABILITY COVERAGE PART  
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART  
RAILROAD PROTECTIVE LIABILITY COVERAGE PART  
UNDERGROUND STORAGE TANK POLICY

1. The insurance does not apply:
  - A. Under any Liability Coverage, to "bodily injury" or "property damage":
    - (1) With respect to which an "insured" under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
    - (2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the "insured" is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
  - B. Under any Medical Payments coverage, to expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.
  - C. Under any Liability Coverage, to "bodily injury" or "property damage" resulting from "hazardous properties" of "nuclear material", if:
    - (1) The "nuclear material" (a) is at any "nuclear facility" owned by, or operated by or on behalf of, an "insured" or (b) has been discharged or dispersed therefrom;
    - (2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an "insured"; or
    - (3) The "bodily injury" or "property damage" arises out of the furnishing by an "insured" of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to "property damage" to such "nuclear facility" and any property thereat.
2. As used in this endorsement:
 

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material **(a)** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and **(b)** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

- (a)** Any "nuclear reactor";
- (b)** Any equipment or device designed or used for **(1)** separating the isotopes of uranium or plutonium, **(2)** processing or utilizing "spent fuel", or **(3)** handling, processing or packaging "waste";

**(c)** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

**(d)** Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

# U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EXCLUSION OF CERTAIN COMPUTER-RELATED LOSSES**

This endorsement modifies insurance provided under the following:

CRIME AND FIDELITY COVERAGE PART  
COMMERCIAL PROPERTY COVERAGE PART

- A.** We will not pay for loss ("loss") or damage caused directly or indirectly by the following. Such loss ("loss") or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss ("loss") or damage.
- 1.** The failure, malfunction or inadequacy of:
    - a.** Any of the following, whether belonging to any insured or to others:
      - (1)** Computer hardware, including micro-processors;
      - (2)** Computer application software;
      - (3)** Computer operating systems and related software;
      - (4)** Computer networks;
      - (5)** Microprocessors (computer chips) not part of any computer system; or
      - (6)** Any other computerized or electronic equipment or components; or
    - b.** Any other products, and any services, data or functions that directly or indirectly use or rely upon, in any manner, any of the items listed in Paragraph **A.1.a.** of this endorsement; due to the inability to correctly recognize, process, distinguish, interpret or accept one or more dates or times. An example is the inability of computer software to recognize the year 2000.
  - 2.** Any advice, consultation, design, evaluation, inspection, installation, maintenance, repair, replacement or supervision provided or done by you or for you to determine, rectify or test for, any potential or actual problems described in Paragraph **A.1.** of this endorsement.
- B.** If an excluded Cause of Loss as described in Paragraph **A.** of this endorsement results:
- 1.** In a Covered Cause of Loss under the Crime and Fidelity Coverage Part, the Commercial Inland Marine Coverage Part or the Standard Property Policy; or
  - 2.** Under the Commercial Property Coverage Part:
    - a.** In a "Specified Cause of Loss", or in elevator collision resulting from mechanical breakdown, under the Causes of Loss - Special Form; or
    - b.** In a Covered Cause of Loss under the Causes Of Loss - Basic Form or the Causes Of Loss - Broad Form;
 we will pay only for the loss ("loss") or damage caused by such "Specified Cause of Loss", elevator collision, or Covered Cause of Loss.
- C.** We will not pay for repair, replacement or modification of any items in Paragraphs **A.1.a.** and **A.1.b.** of this endorsement to correct any deficiencies or change any features.

## SERVICE OF SUIT

In the event of our failure to pay any amount claimed to be due under this policy, we agree to submit to the jurisdiction of any court of competent jurisdiction within the United States in which a suit for those amounts may be brought. Nothing in this condition constitutes or should be understood to constitute a waiver of our right to commence an action in any court of competent jurisdiction in the United States to remove an action to a United States District Court or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States.

Service of process in such suit may be made upon:

US General Counsel  
Accelerant Specialty Insurance Company  
400 Northridge Rd., Suite 800  
Sandy Springs, GA 30350

and in any suit instituted against us with respect to this policy, we will abide by the final decision of such court or of any Appellate Court in the event of an appeal.

To the extent required by the express provision of any statute of any state, territory, district of the United States, we hereby designate the Superintendent, Commissioner or Director of Insurance, or other officer specified for that purpose in the statute, or his successor or successors in office as our true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by you or on your behalf or any beneficiary hereunder arising out of this policy, and we hereby designate the above named Counsel as the person to whom the said officer is authorized to mail such process or true copy thereof.

All other terms and conditions of this policy remain unchanged.



**Accelerant National Insurance Company**  
(A Stock Company)

400 Northridge Rd.  
Suite 800  
Sandy Springs, GA 30350  
(833) 284-9200

Your complete policy consists of the declarations, coverage form(s) and any endorsement(s).

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

[  ]  
\_\_\_\_\_  
President

[  ]  
\_\_\_\_\_  
Secretary

## **RECORDING AND DISTRIBUTION OF MATERIAL OR INFORMATION IN VIOLATION OF LAW EXCLUSION ENDORSEMENT ADVISORY NOTICE TO POLICYHOLDERS**

This Notice does not form a part of your insurance contract. No coverage is provided by this Notice, nor can it be construed to replace any provisions of your policy (including its endorsements). If there is any conflict between this Notice and the policy (including its endorsements), **the provisions of the policy (including its endorsements) shall prevail.**

Carefully read your policy, including the endorsements attached to your policy.

This Notice provides information concerning the following new endorsement, which applies to your renewal policy being issued by us:

### **Recording And Distribution Of Material Or Information In Violation Of Law Exclusion Endorsement CG 00 68 05 09**

This endorsement replaces the current Distribution Of Material In Violation Of Statutes Exclusion in your policy with a revised exclusion, newly titled Recording And Distribution Of Material Or Information In Violation Of Law Exclusion. The revised exclusion contains language that elaborates on the intent of the Distribution Of Material In Violation Of Statutes Exclusion to reflect that, in addition to the TCPA and CAN-SPAM Act of 2003, the exclusion will more explicitly exclude liability coverage for bodily injury, property damage or personal and advertising injury arising out of any action or omission that violates, or is alleged to violate, the Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA) and any other similar federal, state or local statute, ordinance or regulation concerning disposal and dissemination of personal information.



Accelerant National Insurance Company  
(A Stock Company)  
400 Northridge Road, Suite 800  
Sandy Springs, GA 30350  
**A NON PARTICAPTING POLICY**

## COMMERCIAL GENERAL LIABILITY DECLARATIONS

### Pest Control Operations

These Declarations along with the policy and endorsements shall constitute the contract between the insureds and Accelerant National Insurance Company.

**POLICY NUMBER:** N0094GL000803-00

**NAMED INSURED:** Clements Pest Control Services, LLC  
CLEMENTS P C SERVICES INC, Clements Pest Control Services Southwest, LLC, Clements Pest Control Services - Orange, LLC,  
Clements Pest Control Services - Martin, LLC  
**MAILING ADDRESS:** 4036 43rd Avenue Vero Beach, FL 32960

**POLICY PERIOD:** FROM: 9/27/2025 TO: 9/27/2026  
AT 12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS SHOWN ABOVE

**FORM OF BUSINESS:**

☐ CORPORATION ☐ INDIVIDUAL ☒ LIMITED LIABILITY COMPANY  
☐ PARTNERSHIP ☐ OTHER

**LIMITS OF INSURANCE<sup>1</sup>**

|                                                  |             |                                |
|--------------------------------------------------|-------------|--------------------------------|
| GENERAL AGGREGATE LIMIT                          | \$2,000,000 |                                |
| (Other Than Products/Completed Operations)       |             |                                |
| PRODUCTS - COMPLETED OPERATIONS AGGREGATE LIMIT  | \$2,000,000 |                                |
| PERSONAL & ADVERTISING INJURY LIMIT              | \$1,000,000 | Any One Person or Organization |
| EACH OCCURRENCE LIMIT                            | \$1,000,000 | Any One Occurrence             |
| DAMAGES TO PREMISES RENTED TO YOU LIMIT          | \$100,000   | Any One Fire                   |
| MEDICAL EXPENSE LIMIT                            | \$10,000    | Any One Person                 |
| EMPLOYEE BENEFITS LIABILITY AGGREGATE LIMIT      | \$1,000,000 |                                |
| EMPLOYEE BENEFITS LIABILITY PER OCCURRENCE LIMIT | \$1,000,000 |                                |

**DEDUCTIBLE**

EACH OCCURRENCE \$1,000

**EMPLOYEE BENEFITS LIABILITY RETROACTIVE DATE**

This insurance does not apply to any act, error or omission which occurs prior to the retroactive date, if any is shown below.

**Retroactive Date:** 9/27/2025

**LOCATION OF ALL PREMISES YOU OWN, RENT, OR OCCUPY:**

| LOCATION NUMBER | ADDRESS OF ALL PREMISES YOU OWN, RENT, OR OCCUPY    |
|-----------------|-----------------------------------------------------|
| 1               | 4036 43rd Avenue, Vero Beach, FL 32960              |
| 2               | 70917 SW Jack James Drive, Ste. 8, Stuart, FL 34997 |
| 3               | 8600 Commodity Circle #159, Orlando, FL 32819       |
| 4               | 1035 Collier Center Way; Suite 6, Naples, FL 34110  |



| COVERED SERVICES AND RECEIPTS                                                                                                                                     |                                  |            |             |             |           |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|------------|-------------|-------------|-----------|
| LOCATION NUMBER                                                                                                                                                   | SERVICE                          | CLASS CODE | RECEIPTS    | EFFECTIVE   | EXPIRES   |
| 1                                                                                                                                                                 | General Pest                     | 43470      | \$1,600,000 | 9/27/2025   | 9/27/2026 |
| 1                                                                                                                                                                 | Mosquito Control                 | 43470      | \$15,000    | 9/27/2025   | 9/27/2026 |
| 1                                                                                                                                                                 | Termite Treatment                | 43479      | \$160,000   | 9/27/2025   | 9/27/2026 |
| 1                                                                                                                                                                 | Herbicidal Spraying/Weed Control | 97050      | \$165,000   | 9/27/2025   | 9/27/2026 |
| 1                                                                                                                                                                 | Lawn Care                        | 97050      | \$1,200,000 | 9/27/2025   | 9/27/2026 |
| 1                                                                                                                                                                 | WDI/O Real Estate Inspections    | 43480      | \$2,000     | 9/27/2025   | 9/27/2026 |
| 2                                                                                                                                                                 | General Pest                     | 43470      | \$700,000   | 9/27/2025   | 9/27/2026 |
| 2                                                                                                                                                                 | Mosquito Control                 | 43470      | \$2,000     | 9/27/2025   | 9/27/2026 |
| 2                                                                                                                                                                 | Termite Treatment                | 43479      | \$24,000    | 9/27/2025   | 9/27/2026 |
| 2                                                                                                                                                                 | Herbicidal Spraying/Weed Control | 97050      | \$40,000    | 9/27/2025   | 9/27/2026 |
| 2                                                                                                                                                                 | Lawn Care                        | 97050      | \$355,000   | 9/27/2025   | 9/27/2026 |
| 3                                                                                                                                                                 | General Pest                     | 43470      | \$480,000   | 9/27/2025   | 9/27/2026 |
| 3                                                                                                                                                                 | Mosquito Control                 | 43470      | \$1,000     | 9/27/2025   | 9/27/2026 |
| 3                                                                                                                                                                 | Termite Treatment                | 43479      | \$285,000   | 9/27/2025   | 9/27/2026 |
| 3                                                                                                                                                                 | Herbicidal Spraying/Weed Control | 97050      | \$20,000    | 9/27/2025   | 9/27/2026 |
| 3                                                                                                                                                                 | Lawn Care                        | 97050      | \$143,000   | 9/27/2025   | 9/27/2026 |
| 4                                                                                                                                                                 | General Pest                     | 43470      | \$455,000   | 9/27/2025   | 9/27/2026 |
| 4                                                                                                                                                                 | Wildlife Control                 | 43470      | \$61,000    | 9/27/2025   | 9/27/2026 |
| 4                                                                                                                                                                 | Termite Treatment                | 43479      | \$20,000    | 9/27/2025   | 9/27/2026 |
| 4                                                                                                                                                                 | Lawn Care                        | 97050      | \$42,000    | 9/27/2025   | 9/27/2026 |
| 4                                                                                                                                                                 | Herbicidal Spraying/Weed Control | 97050      | \$8,000     | 9/27/2025   | 9/27/2026 |
| STATE TAX OR OTHER (if applicable)                                                                                                                                |                                  |            |             | \$322.06    |           |
| TOTAL PREMIUM (Subject to Audit)                                                                                                                                  |                                  |            |             | \$32,206.00 |           |
| AT INCEPTION                                                                                                                                                      |                                  |            |             | \$          |           |
| AT EACH ANNIVERSARY                                                                                                                                               |                                  |            |             | \$          |           |
| PREMIUM SHOWN IS PAYABLE <sup>2</sup>                                                                                                                             |                                  |            |             |             |           |
| <sup>1</sup> PLEASE READ YOUR POLICY CAREFULLY AS CERTAIN SUBLIMITS MAY APPLY.<br><sup>2</sup> Premiums are based on estimated receipts and are subject to audit. |                                  |            |             |             |           |



**FORMS AND ENDORSEMENTS APPLICABLE:**

|                       |                                                                                                      |
|-----------------------|------------------------------------------------------------------------------------------------------|
| CG 00 01 04 13        | Commercial General Liability Coverage Form                                                           |
| N GL 0070 00005 10 23 | Conditional Notice of Cancellation for Additional Insureds                                           |
| CG 04 35 12 07        | Employee Benefits Liability Coverage                                                                 |
| CG 22 64 04 13        | Pesticide or Herbicide Applicator - Limited Pollution Coverage                                       |
| CG 40 32 05 23        | Exclusion - Perfluoroalkyl and Polyfluoroalkyl Substances (PFAs)                                     |
| N GL 0070 00021 10 23 | Communicable Disease Exclusion                                                                       |
| N GL 0070 00025 10 23 | Asbestos Exclusion                                                                                   |
| N GL 0070 00026 10 23 | Lead and Silica Exclusion                                                                            |
| N GL 0070 00028 10 23 | Exclusion - Punitive Damages                                                                         |
| N GL 0070 00030 10 23 | Employers Liability Amendatory Endorsement                                                           |
| N GL 0070 00033 06 24 | Dry Heat Services Endorsement                                                                        |
| N GL 0070 00033 10 23 | Bed Bug Endorsement                                                                                  |
| N GL 0070 00040 10 23 | Termite Wood Destroying Insect and Organism Treatment Comp Oper Coverage                             |
| N GL 0070 00041 10 23 | Additional Exclusions                                                                                |
| N GL 0070 00042 10 23 | Assault Battery Harassment Stalking or Violent Acts Exclusion                                        |
| N GL 0070 00043 10 23 | Employment-Related Practices Exclusion                                                               |
| N GL 0070 00044 10 23 | Deductible Endorsement                                                                               |
| N GL 0070 00045 10 23 | Pesticide Applicator Coverage Amend Endorse (CCC)                                                    |
| N GL 0070 00046 10 23 | Anti-Stacking Condition                                                                              |
| N GL 0070 00047 10 23 | Limiting Exclusion Endorsement.                                                                      |
| N GL 0070 00048 10 23 | Claim Related Costs Endorsement                                                                      |
| N GL 0070 00050 10 23 | Blanket Additional Insured, Primary & NonContributory, and Waiver of Subrogation (Incl Completed Ope |
| N GL 0070 00053 10 23 | Structural Inspection and Appraisal Exclusion Endorsement                                            |
| N GL 0070 00054 10 23 | Auto Transit Pollution Coverage Endorsement                                                          |
| N GL 0070 00055 10 23 | Pre-Existing Bodily Injury, Property Damage or Personal and Advertising Injury Exclusion             |
| N GL 0070 00056 10 23 | Regulatory Action Endorsement                                                                        |
| N GL 0070 00057 10 23 | Copyright Patent and Non-Compete Agreement Exclusion                                                 |
| N GL 0070 00058 10 23 | Direct and Subcontracted Fumigation Endorsement                                                      |
| N GL 0070 00059 10 23 | Wood Destroying Insect and or Organism Real Estate Inspection Endorsement                            |
| N GL 0070 00061 10 23 | Errors and Omissions Liability Endorsement                                                           |
| N GL 0070 00062 10 23 | Lost Key Coverage Endorsement                                                                        |
| N GL 0070 00063 10 23 | Expanded Property Damage Endorsement                                                                 |
| CG 20 10 12 19B       | Blanket Additional Insured - Owners, Lessees or Contractors - Scheduled Person or Organization       |
| CG 20 37 12 19B       | ADDITIONAL INSURED - OWNERS, LESSEES OR CONTRACTORS - COMPLETED OPERATIONS (Blanket)                 |
| CG 40 10 12 19        | Exclusion- Cross Suits Liability                                                                     |
| CG 78 32 02 13        | Endorsement Alabama Special Policy Limits and Terms Endorsement                                      |

THESE DECLARATIONS ARE PART OF THE COMMON POLICY DECLARATIONS CONTAINING THE NAMED INSURED AND THE POLICY PERIOD.

# COMMERCIAL GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we", "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

## SECTION I – COVERAGES

### COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY

#### 1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

- b. This insurance applies to "bodily injury" and "property damage" only if:

- (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";

- (2) The "bodily injury" or "property damage" occurs during the policy period; and

- (3) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

- (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
- (2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or
- (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

- e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

## 2. Exclusions

This insurance does not apply to:

### a. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

### b. Contractual Liability

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorneys' fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:
  - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
  - (b) Such attorneys' fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

### c. Liquor Liability

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

- (1) Causing or contributing to the intoxication of any person;
- (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
- (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in:

- (a) The supervision, hiring, employment, training or monitoring of others by that insured; or
- (b) Providing or failing to provide transportation with respect to any person that may be under the influence of alcohol;

if the "occurrence" which caused the "bodily injury" or "property damage", involved that which is described in Paragraph (1), (2) or (3) above.

However, this exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on your premises, for consumption on your premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.

### d. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

### e. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
  - (a) Employment by the insured; or
  - (b) Performing duties related to the conduct of the insured's business; or
- (2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph (1) above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

#### **f. Pollution**

**(1)** "Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

**(a)** At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:

**(i)** "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;

**(ii)** "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or

**(iii)** "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";

**(b)** At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;

**(c)** Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:

**(i)** Any insured; or

**(ii)** Any person or organization for whom you may be legally responsible; or

**(d)** At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:

**(i)** "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of "mobile equipment" or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;

**(ii)** "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or

**(iii)** "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".

**(e)** At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

(2) Any loss, cost or expense arising out of any:

- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
- (b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this paragraph does not apply to liability for damages because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "suit" by or on behalf of a governmental authority.

**g. Aircraft, Auto Or Watercraft**

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is:
  - (a) Less than 26 feet long; and
  - (b) Not being used to carry persons or property for a charge;
- (3) Parking an "auto" on, or on the ways next to, premises you own or rent, provided the "auto" is not owned by or rented or loaned to you or the insured;
- (4) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft; or

(5) "Bodily injury" or "property damage" arising out of:

- (a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged; or
- (b) The operation of any of the machinery or equipment listed in Paragraph **f.(2)** or **f.(3)** of the definition of "mobile equipment".

**h. Mobile Equipment**

"Bodily injury" or "property damage" arising out of:

- (1) The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or
- (2) The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

**i. War**

"Bodily injury" or "property damage", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

**j. Damage To Property**

"Property damage" to:

- (1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you;

- (4) Personal property in the care, custody or control of the insured;
- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of seven or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section III – Limits Of Insurance.

Paragraph (2) of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

#### **k. Damage To Your Product**

"Property damage" to "your product" arising out of it or any part of it.

#### **l. Damage To Your Work**

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

#### **m. Damage To Impaired Property Or Property Not Physically Injured**

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

- (1) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or
- (2) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

#### **n. Recall Of Products, Work Or Impaired Property**

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) "Your product";
- (2) "Your work"; or
- (3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

#### **o. Personal And Advertising Injury**

"Bodily injury" arising out of "personal and advertising injury".

#### **p. Electronic Data**

Damages arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

However, this exclusion does not apply to liability for damages because of "bodily injury".

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

#### **q. Recording And Distribution Of Material Or Information In Violation Of Law**

"Bodily injury" or "property damage" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law;
- (3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

- (4) Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

Exclusions c. through n. do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in Section III – Limits Of Insurance.

## **COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**

### **1. Insuring Agreement**

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

- b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

### **2. Exclusions**

This insurance does not apply to:

#### **a. Knowing Violation Of Rights Of Another**

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

#### **b. Material Published With Knowledge Of Falsity**

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material, if done by or at the direction of the insured with knowledge of its falsity.

#### **c. Material Published Prior To Policy Period**

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material whose first publication took place before the beginning of the policy period.

#### **d. Criminal Acts**

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

#### **e. Contractual Liability**

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

#### **f. Breach Of Contract**

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

#### **g. Quality Or Performance Of Goods – Failure To Conform To Statements**

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

#### **h. Wrong Description Of Prices**

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

**i. Infringement Of Copyright, Patent, Trademark Or Trade Secret**

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement".

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

**j. Insureds In Media And Internet Type Businesses**

"Personal and advertising injury" committed by an insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of web sites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **14.a.**, **b.** and **c.** of "personal and advertising injury" under the Definitions section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

**k. Electronic Chatrooms Or Bulletin Boards**

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

**l. Unauthorized Use Of Another's Name Or Product**

"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

**m. Pollution**

"Personal and advertising injury" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

**n. Pollution-related**

Any loss, cost or expense arising out of any:

- (1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
- (2) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

**o. War**

"Personal and advertising injury", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

**p. Recording And Distribution Of Material Or Information In Violation Of Law**

"Personal and advertising injury" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law;
- (3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or
- (4) Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

## **COVERAGE C – MEDICAL PAYMENTS**

### **1. Insuring Agreement**

- a. We will pay medical expenses as described below for "bodily injury" caused by an accident:

- (1) On premises you own or rent;
  - (2) On ways next to premises you own or rent; or
  - (3) Because of your operations;
- provided that:

- (a) The accident takes place in the "coverage territory" and during the policy period;
- (b) The expenses are incurred and reported to us within one year of the date of the accident; and
- (c) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

- b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:

- (1) First aid administered at the time of an accident;
- (2) Necessary medical, surgical, X-ray and dental services, including prosthetic devices; and
- (3) Necessary ambulance, hospital, professional nursing and funeral services.

### **2. Exclusions**

We will not pay expenses for "bodily injury":

#### **a. Any Insured**

To any insured, except "volunteer workers".

#### **b. Hired Person**

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

#### **c. Injury On Normally Occupied Premises**

To a person injured on that part of premises you own or rent that the person normally occupies.

### **d. Workers' Compensation And Similar Laws**

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

### **e. Athletics Activities**

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

### **f. Products-Completed Operations Hazard**

Included within the "products-completed operations hazard".

### **g. Coverage A Exclusions**

Excluded under Coverage A.

## **SUPPLEMENTARY PAYMENTS – COVERAGES A AND B**

1. We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:

- a. All expenses we incur.
- b. Up to \$250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.
- c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
- d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to \$250 a day because of time off from work.
- e. All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.
- f. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

- g.** All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

- 2.** If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:

  - a.** The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";
  - b.** This insurance applies to such liability assumed by the insured;
  - c.** The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";
  - d.** The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
  - e.** The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and
  - f.** The indemnitee:

    - (1)** Agrees in writing to:

      - (a)** Cooperate with us in the investigation, settlement or defense of the "suit";
      - (b)** Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";
      - (c)** Notify any other insurer whose coverage is available to the indemnitee; and
      - (d)** Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
    - (2)** Provides us with written authorization to:

      - (a)** Obtain records and other information related to the "suit"; and
      - (b)** Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph **2.b.(2)** of Section **I – Coverage A – Bodily Injury And Property Damage Liability**, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph **f.** above, are no longer met.

## **SECTION II – WHO IS AN INSURED**

- 1.** If you are designated in the Declarations as:

  - a.** An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
  - b.** A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
  - c.** A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
  - d.** An organization other than a partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.
  - e.** A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:
    - a. Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:
      - (1) "Bodily injury" or "personal and advertising injury":
        - (a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;
        - (b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph (1)(a) above;
        - (c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraph (1)(a) or (b) above; or
        - (d) Arising out of his or her providing or failing to provide professional health care services.
      - (2) "Property damage" to property:
        - (a) Owned, occupied or used by;
        - (b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by; you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).
    - b. Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.
    - c. Any person or organization having proper temporary custody of your property if you die, but only:
      - (1) With respect to liability arising out of the maintenance or use of that property; and
      - (2) Until your legal representative has been appointed.
    - d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.
  3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:
    - a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;
    - b. Coverage **A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and
    - c. Coverage **B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.
- No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

### SECTION III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
  - a. Insureds;
  - b. Claims made or "suits" brought; or
  - c. Persons or organizations making claims or bringing "suits".
2. The General Aggregate Limit is the most we will pay for the sum of:
  - a. Medical expenses under Coverage **C**;
  - b. Damages under Coverage **A**, except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard"; and
  - c. Damages under Coverage **B**.

3. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage **A** for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard".
4. Subject to Paragraph 2. above, the Personal And Advertising Injury Limit is the most we will pay under Coverage **B** for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.
5. Subject to Paragraph 2. or 3. above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:
  - a. Damages under Coverage **A**; and
  - b. Medical expenses under Coverage **C**
 because of all "bodily injury" and "property damage" arising out of any one "occurrence".
6. Subject to Paragraph 5. above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage **A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.
7. Subject to Paragraph 5. above, the Medical Expense Limit is the most we will pay under Coverage **C** for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

#### **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**

##### **1. Bankruptcy**

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Coverage Part.

##### **2. Duties In The Event Of Occurrence, Offense, Claim Or Suit**

- a. You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:
  - (1) How, when and where the "occurrence" or offense took place;
  - (2) The names and addresses of any injured persons and witnesses; and

- (3) The nature and location of any injury or damage arising out of the "occurrence" or offense.

- b. If a claim is made or "suit" is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or "suit" and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

- c. You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

- d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

##### **3. Legal Action Against Us**

No person or organization has a right under this Coverage Part:

- a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
- b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

#### 4. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages **A** or **B** of this Coverage Part, our obligations are limited as follows:

##### a. Primary Insurance

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

##### b. Excess Insurance

###### (1) This insurance is excess over:

- (a) Any of the other insurance, whether primary, excess, contingent or on any other basis:
  - (i) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";
  - (ii) That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
  - (iii) That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner; or
  - (iv) If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion **g.** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability.
- (b) Any other primary insurance available to you covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured.

###### (2) When this insurance is excess, we will have no duty under Coverages **A** or **B** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

###### (3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

- (a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
- (b) The total of all deductible and self-insured amounts under all that other insurance.

###### (4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

##### c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

#### 5. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.
- b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

#### 6. Representations

By accepting this policy, you agree:

- a. The statements in the Declarations are accurate and complete;

- b. Those statements are based upon representations you made to us; and
- c. We have issued this policy in reliance upon your representations.

#### **7. Separation Of Insureds**

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom claim is made or "suit" is brought.

#### **8. Transfer Of Rights Of Recovery Against Others To Us**

If the insured has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

#### **9. When We Do Not Renew**

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

### **SECTION V – DEFINITIONS**

1. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
  - a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and
  - b. Regarding web sites, only that part of a web site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
2. "Auto" means:
  - a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or
  - b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

3. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.
4. "Coverage territory" means:
  - a. The United States of America (including its territories and possessions), Puerto Rico and Canada;
  - b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or
  - c. All other parts of the world if the injury or damage arises out of:
    - (1) Goods or products made or sold by you in the territory described in Paragraph **a.** above;
    - (2) The activities of a person whose home is in the territory described in Paragraph **a.** above, but is away for a short time on your business; or
    - (3) "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication;

provided the insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in Paragraph **a.** above or in a settlement we agree to.

5. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
6. "Executive officer" means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.
7. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.
8. "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:
  - a. It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
  - b. You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of "your product" or "your work" or your fulfilling the terms of the contract or agreement.

**9. "Insured contract" means:**

- a.** A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
- b.** A sidetrack agreement;
- c.** Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- d.** An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e.** An elevator maintenance agreement;
- f.** That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

- (1)** That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
- (2)** That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
  - (a)** Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
  - (b)** Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (3)** Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in **(2)** above and supervisory, inspection, architectural or engineering activities.

**10. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".**

**11. "Loading or unloading" means the handling of property:**

- a.** After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";
- b.** While it is in or on an aircraft, watercraft or "auto"; or
- c.** While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

**12. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:**

- a.** Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b.** Vehicles maintained for use solely on or next to premises you own or rent;
- c.** Vehicles that travel on crawler treads;
- d.** Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
  - (1)** Power cranes, shovels, loaders, diggers or drills; or
  - (2)** Road construction or resurfacing equipment such as graders, scrapers or rollers;
- e.** Vehicles not described in Paragraph **a., b., c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
  - (1)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
  - (2)** Cherry pickers and similar devices used to raise or lower workers;
- f.** Vehicles not described in Paragraph **a., b., c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

- (1)** Equipment designed primarily for:
  - (a)** Snow removal;
  - (b)** Road maintenance, but not construction or resurfacing; or
  - (c)** Street cleaning;
- (2)** Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
- (3)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

**13.** "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

**14.** "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

- a.** False arrest, detention or imprisonment;
- b.** Malicious prosecution;
- c.** The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
- d.** Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
- e.** Oral or written publication, in any manner, of material that violates a person's right of privacy;
- f.** The use of another's advertising idea in your "advertisement"; or
- g.** Infringing upon another's copyright, trade dress or slogan in your "advertisement".

**15.** "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

**16.** "Products-completed operations hazard":

**a.** Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

- (1)** Products that are still in your physical possession; or
- (2)** Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:
  - (a)** When all of the work called for in your contract has been completed.
  - (b)** When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
  - (c)** When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

**b.** Does not include "bodily injury" or "property damage" arising out of:

- (1)** The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;
- (2)** The existence of tools, uninstalled equipment or abandoned or unused materials; or
- (3)** Products or operations for which the classification, listed in the Declarations or in a policy Schedule, states that products-completed operations are subject to the General Aggregate Limit.

**17.** "Property damage" means:

- a.** Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b.** Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

**18.** "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:

- a.** An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
- b.** Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

**19.** "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

**20.** "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

**21.** "Your product":

**a.** Means:

- (1)** Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
  - (a)** You;
  - (b)** Others trading under your name; or
  - (c)** A person or organization whose business or assets you have acquired; and
- (2)** Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

**b.** Includes:

- (1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
- (2)** The providing of or failure to provide warnings or instructions.

**c.** Does not include vending machines or other property rented to or located for the use of others but not sold.

**22.** "Your work":

**a.** Means:

- (1)** Work or operations performed by you or on your behalf; and
- (2)** Materials, parts or equipment furnished in connection with such work or operations.

**b.** Includes:

- (1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work"; and
- (2)** The providing of or failure to provide warnings or instructions.

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### **CONDITIONAL NOTICE OF CANCELLATION FOR ADDITIONAL INSURED**

This endorsement modifies insurance provided under the following:  
COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following is added to **CANCELLATION**, paragraph **2.c.** of **COMMON POLICY CONDITIONS**:

- 2. c.** A 30 day cancellation notice will be provided for an additional insured listed on the policy. The 30 day cancellation notice is only applicable if the request is made in writing and an endorsement, provided by us, is added to the policy for the additional insured requesting the 30 day cancellation notice.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EMPLOYEE BENEFITS LIABILITY COVERAGE**

**THIS ENDORSEMENT PROVIDES CLAIMS-MADE COVERAGE.  
PLEASE READ THE ENTIRE ENDORSEMENT CAREFULLY.**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

#### **SCHEDULE**

| Coverage                                                                                               | Limit Of Insurance        | Each Employee Deductible | Premium     |
|--------------------------------------------------------------------------------------------------------|---------------------------|--------------------------|-------------|
| Employee Benefits Programs                                                                             | \$1,000,000 each employee | \$1,000                  | \$ INCLUDED |
|                                                                                                        | \$1,000,000 aggregate     |                          |             |
| Retroactive Date:                                                                                      | 9/27/2025                 |                          |             |
| Information required to complete this schedule, if not shown above, will be shown in the Declarations. |                           |                          |             |

**A. The following is added to Section I – Coverages:**

**COVERAGE – EMPLOYEE BENEFITS LIABILITY**

**1. Insuring Agreement**

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of any act, error or omission, of the insured, or of any other person for whose acts the insured is legally liable, to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages to which this insurance does not apply. We may, at our discretion, investigate any report of an act, error or omission and settle any "claim" or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Paragraph **D.** (Section **III** – Limits Of Insurance); and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

**b. This insurance applies to damages only if:**

- (1) The act, error or omission, is negligently committed in the "administration" of your "employee benefit program";
- (2) The act, error or omission, did not take place before the Retroactive Date, if any, shown in the Schedule nor after the end of the policy period; and
- (3) A "claim" for damages, because of an act, error or omission, is first made against any insured, in accordance with Paragraph **c.** below, during the policy period or an Extended Reporting Period we provide under Paragraph **F.** of this endorsement.

**c. A "claim" seeking damages will be deemed to have been made at the earlier of the following times:**

- (1) When notice of such "claim" is received and recorded by any insured or by us, whichever comes first; or

- (2) When we make settlement in accordance with Paragraph **a.** above.

A "claim" received and recorded by the insured within 60 days after the end of the policy period will be considered to have been received within the policy period, if no subsequent policy is available to cover the claim.

- d. All "claims" for damages made by an "employee" because of any act, error or omission, or a series of related acts, errors or omissions, including damages claimed by such "employee's" dependents and beneficiaries, will be deemed to have been made at the time the first of those "claims" is made against any insured.

## **2. Exclusions**

This insurance does not apply to:

### **a. Dishonest, Fraudulent, Criminal Or Malicious Act**

Damages arising out of any intentional, dishonest, fraudulent, criminal or malicious act, error or omission, committed by any insured, including the willful or reckless violation of any statute.

### **b. Bodily Injury, Property Damage, Or Personal And Advertising Injury**

"Bodily injury", "property damage" or "personal and advertising injury".

### **c. Failure To Perform A Contract**

Damages arising out of failure of performance of contract by any insurer.

### **d. Insufficiency Of Funds**

Damages arising out of an insufficiency of funds to meet any obligations under any plan included in the "employee benefit program".

### **e. Inadequacy Of Performance Of Investment/Advice Given With Respect To Participation**

Any "claim" based upon:

- (1) Failure of any investment to perform;
- (2) Errors in providing information on past performance of investment vehicles; or
- (3) Advice given to any person with respect to that person's decision to participate or not to participate in any plan included in the "employee benefit program".

## **f. Workers' Compensation And Similar Laws**

Any "claim" arising out of your failure to comply with the mandatory provisions of any workers' compensation, unemployment compensation insurance, social security or disability benefits law or any similar law.

## **g. ERISA**

Damages for which any insured is liable because of liability imposed on a fiduciary by the Employee Retirement Income Security Act of 1974, as now or hereafter amended, or by any similar federal, state or local laws.

## **h. Available Benefits**

Any "claim" for benefits to the extent that such benefits are available, with reasonable effort and cooperation of the insured, from the applicable funds accrued or other collectible insurance.

## **i. Taxes, Fines Or Penalties**

Taxes, fines or penalties, including those imposed under the Internal Revenue Code or any similar state or local law.

## **j. Employment-Related Practices**

Damages arising out of wrongful termination of employment, discrimination, or other employment-related practices.

## **B. For the purposes of the coverage provided by this endorsement:**

1. All references to Supplementary Payments – Coverages **A** and **B** are replaced by Supplementary Payments – Coverages **A**, **B** and **Employee Benefits Liability**.
2. Paragraphs **1.b.** and **2.** of the Supplementary Payments provision do not apply.

## **C. For the purposes of the coverage provided by this endorsement, Paragraphs **2.** and **3.** of **Section II – Who Is An Insured** are replaced by the following:**

### **2. Each of the following is also an insured:**

- a. Each of your "employees" who is or was authorized to administer your "employee benefit program".
- b. Any persons, organizations or "employees" having proper temporary authorization to administer your "employee benefit program" if you die, but only until your legal representative is appointed.

- c. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Endorsement.
- 3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if no other similar insurance applies to that organization. However:
  - a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier.
  - b. Coverage under this provision does not apply to any act, error or omission that was committed before you acquired or formed the organization.
- D. For the purposes of the coverage provided by this endorsement, **Section III – Limits Of Insurance** is replaced by the following:

#### 1. Limits Of Insurance

- a. The Limits of Insurance shown in the Schedule and the rules below fix the most we will pay regardless of the number of:
  - (1) Insureds;
  - (2) "Claims" made or "suits" brought;
  - (3) Persons or organizations making "claims" or bringing "suits";
  - (4) Acts, errors or omissions; or
  - (5) Benefits included in your "employee benefit program".
- b. The Aggregate Limit is the most we will pay for all damages because of acts, errors or omissions negligently committed in the "administration" of your "employee benefit program".
- c. Subject to the Aggregate Limit, the Each Employee Limit is the most we will pay for all damages sustained by any one "employee", including damages sustained by such "employee's" dependents and beneficiaries, as a result of:
  - (1) An act, error or omission; or
  - (2) A series of related acts, errors or omissions negligently committed in the "administration" of your "employee benefit program".

However, the amount paid under this endorsement shall not exceed, and will be subject to, the limits and restrictions that apply to the payment of benefits in any plan included in the "employee benefit program".

The Limits of Insurance of this endorsement apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations of the policy to which this endorsement is attached, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits Of Insurance.

#### 2. Deductible

- a. Our obligation to pay damages on behalf of the insured applies only to the amount of damages in excess of the deductible amount stated in the Schedule as applicable to Each Employee. The limits of insurance shall not be reduced by the amount of this deductible.
- b. The deductible amount stated in the Schedule applies to all damages sustained by any one "employee", including such "employee's" dependents and beneficiaries, because of all acts, errors or omissions to which this insurance applies.
- c. The terms of this insurance, including those with respect to:
  - (1) Our right and duty to defend any "suits" seeking those damages; and
  - (2) Your duties, and the duties of any other involved insured, in the event of an act, error or omission, or "claim"

apply irrespective of the application of the deductible amount.
- d. We may pay any part or all of the deductible amount to effect settlement of any "claim" or "suit" and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as we have paid.
- E. For the purposes of the coverage provided by this endorsement, Conditions 2. and 4. of **Section IV – Commercial General Liability Conditions** are replaced by the following:
  - 2. **Duties In The Event Of An Act, Error Or Omission, Or "Claim" Or "Suit"**
    - a. You must see to it that we are notified as soon as practicable of an act, error or omission which may result in a "claim". To the extent possible, notice should include:
      - (1) What the act, error or omission was and when it occurred; and

- (2) The names and addresses of anyone who may suffer damages as a result of the act, error or omission.

**b.** If a "claim" is made or "suit" is brought against any insured, you must:

- (1) Immediately record the specifics of the "claim" or "suit" and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the "claim" or "suit" as soon as practicable.

**c.** You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "claim" or "suit";
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the "claim" or defense against the "suit"; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of an act, error or omission to which this insurance may also apply.

**d.** No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation or incur any expense without our consent.

**4. Other Insurance**

If other valid and collectible insurance is available to the insured for a loss we cover under this endorsement, our obligations are limited as follows:

**a. Primary Insurance**

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

**b. Excess Insurance**

- (1) This insurance is excess over any of the other insurance, whether primary, excess, contingent or on any other basis that is effective prior to the beginning of the policy period shown in the Schedule of this insurance and that applies to an act, error or omission on other than a claims-made basis, if:

- (a) No Retroactive Date is shown in the Schedule of this insurance; or

- (b) The other insurance has a policy period which continues after the Retroactive Date shown in the Schedule of this insurance.

- (2) When this insurance is excess, we will have no duty to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

- (3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of the total amount that all such other insurance would pay for the loss in absence of this insurance; and the total of all deductible and self-insured amounts under all that other insurance.

- (4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Schedule of this endorsement.

**c. Method Of Sharing**

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limits of insurance to the total applicable limits of insurance of all insurers.

- F. For the purposes of the coverage provided by this endorsement, the following Extended Reporting Period provisions are added, or, if this endorsement is attached to a claims-made Coverage Part, replaces any similar Section in that Coverage Part:

**EXTENDED REPORTING PERIOD**

1. You will have the right to purchase an Extended Reporting Period, as described below, if:
  - a. This endorsement is canceled or not renewed; or
  - b. We renew or replace this endorsement with insurance that:
    - (1) Has a Retroactive Date later than the date shown in the Schedule of this endorsement; or
    - (2) Does not apply to an act, error or omission on a claims-made basis.
2. The Extended Reporting Period does not extend the policy period or change the scope of coverage provided. It applies only to "claims" for acts, errors or omissions that were first committed before the end of the policy period but not before the Retroactive Date, if any, shown in the Schedule. Once in effect, the Extended Reporting Period may not be canceled.
3. An Extended Reporting Period of five years is available, but only by an endorsement and for an extra charge.

You must give us a written request for the endorsement within 60 days after the end of the policy period. The Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due.

We will determine the additional premium in accordance with our rules and rates. In doing so, we may take into account the following:

- a. The "employee benefit programs" insured;
- b. Previous types and amounts of insurance;
- c. Limits of insurance available under this endorsement for future payment of damages; and
- d. Other related factors.

The additional premium will not exceed 100% of the annual premium for this endorsement.

The Extended Reporting Period endorsement applicable to this coverage shall set forth the terms, not inconsistent with this Section, applicable to the Extended Reporting Period, including a provision to the effect that the insurance afforded for "claims" first received during such period is excess over any other valid and collectible insurance available under policies in force after the Extended Reporting Period starts.

4. If the Extended Reporting Period is in effect, we will provide an extended reporting period aggregate limit of insurance described below, but only for claims first received and recorded during the Extended Reporting Period.

The extended reporting period aggregate limit of insurance will be equal to the dollar amount shown in the Schedule of this endorsement under Limits of Insurance.

Paragraph **D.1.b.** of this endorsement will be amended accordingly. The Each Employee Limit shown in the Schedule will then continue to apply as set forth in Paragraph **D.1.c.**

- G. For the purposes of the coverage provided by this endorsement, the following definitions are added to the **Definitions** Section:

1. "Administration" means:
  - a. Providing information to "employees", including their dependents and beneficiaries, with respect to eligibility for or scope of "employee benefit programs";
  - b. Handling records in connection with the "employee benefit program"; or
  - c. Effecting, continuing or terminating any "employee's" participation in any benefit included in the "employee benefit program".However, "administration" does not include handling payroll deductions.
2. "Cafeteria plans" means plans authorized by applicable law to allow employees to elect to pay for certain benefits with pre-tax dollars.
3. "Claim" means any demand, or "suit", made by an "employee" or an "employee's" dependents and beneficiaries, for damages as the result of an act, error or omission.

- 4. "Employee benefit program" means a program providing some or all of the following benefits to "employees", whether provided through a "cafeteria plan" or otherwise:
  - a. Group life insurance, group accident or health insurance, dental, vision and hearing plans, and flexible spending accounts, provided that no one other than an "employee" may subscribe to such benefits and such benefits are made generally available to those "employees" who satisfy the plan's eligibility requirements;
  - b. Profit sharing plans, employee savings plans, employee stock ownership plans, pension plans and stock subscription plans, provided that no one other than an "employee" may subscribe to such benefits and such benefits are made generally available to all "employees" who are eligible under the plan for such benefits;
  - c. Unemployment insurance, social security benefits, workers' compensation and disability benefits;
  - d. Vacation plans, including buy and sell programs; leave of absence programs, including military, maternity, family, and civil leave; tuition assistance plans; transportation and health club subsidies; and
  - e. Any other similar benefits designated in the Schedule or added thereto by endorsement.
- H. For the purposes of the coverage provided by this endorsement, Definitions 5. and 18. in the **Definitions** Section are replaced by the following:
  - 5. "Employee" means a person actively employed, formerly employed, on leave of absence or disabled, or retired. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
  - 18. "Suit" means a civil proceeding in which damages because of an act, error or omission to which this insurance applies are alleged. "Suit" includes:
    - a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
    - b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

POLICY NUMBER: N0094GL000803-00

COMMERCIAL GENERAL  
LIABILITY  
CG 22 64 04 13

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

## PESTICIDE OR HERBICIDE APPLICATOR – LIMITED POLLUTION COVERAGE

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

### SCHEDULE

#### Description Of Operations:

*Schedule of Covered Operations is listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS PAGE*

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

With respect to the operations shown in the Schedule, Paragraph **(1)(d)** of Exclusion **f.** of **Section I – Coverage A – Bodily Injury And Property Damage Liability** does not apply if the operations meet all standards of any statute, ordinance, regulation or license requirement of any federal, state or local government which apply to those operations.



**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EXCLUSION – PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS)**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

- A. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability:**

#### **2. Exclusions**

This insurance does not apply to:

#### **Perfluoroalkyl And Polyfluoroalkyl Substances**

- a.** "Bodily injury" or "property damage" which would not have occurred, in whole or in part, but for the actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any "perfluoroalkyl or polyfluoroalkyl substances".
- b.** Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "perfluoroalkyl or polyfluoroalkyl substances", by any insured or by any other person or entity.

- B. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverage B – Personal And Advertising Injury Liability:**

#### **2. Exclusions**

This insurance does not apply to:

#### **Perfluoroalkyl And Polyfluoroalkyl Substances**

- a.** "Personal and advertising injury" which would not have taken place, in whole or in part, but for the actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any "perfluoroalkyl or polyfluoroalkyl substances".
- b.** Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "perfluoroalkyl or polyfluoroalkyl substances", by any insured or by any other person or entity.

**C.** The following definition is added to the **Definitions** Section:

"Perfluoroalkyl or polyfluoroalkyl substances" means any:

- 1.** Chemical or substance that contains one or more alkyl carbons on which hydrogen atoms have been partially or completely replaced by fluorine atoms, including but not limited to:
  - a.** Polymer, oligomer, monomer or nonpolymer chemicals and their homologues, isomers, telomers, salts, derivatives, precursor chemicals, degradation products or by-products;
  - b.** Perfluoroalkyl acids (PFAA), such as perfluorooctanoic acid (PFOA) and its salts, or perfluorooctane sulfonic acid (PFOS) and its salts;
  - c.** Perfluoropolyethers (PFPE);
  - d.** Fluorotelomer-based substances; or
  - e.** Side-chain fluorinated polymers; or
- 2.** Good or product, including containers, materials, parts or equipment furnished in connection with such goods or products, that consists of or contains any chemical or substance described in Paragraph **C.1.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EXCLUSION – COMMUNICABLE DISEASE**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE FORM**

The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to:

#### **Communicable Disease**

“Bodily injury”, “property damage”, “personal and advertising injury” or any other loss, cost or expense arising directly or indirectly, in whole or in part, out of the actual or alleged transmission of any communicable disease or which is any way related to the transmission of any communicable disease or any fear or threat of any communicable disease.

This exclusion applies even if the claims against any insured allege negligence or wrongdoing in any:

- a. Employing, hiring, supervising, training or monitoring of any person including, but not limited to, any “employee”, “volunteer worker”, contractor or others who are working under contract for or on behalf of any insured that may be infected with and transmit any communicable disease;
- b. Testing for any communicable disease;
- c. Failure to perform services which were either recommended to, intended to, or assumed to prevent any communicable disease or the transmission to others;
- d. Procedures, or lack thereof, to manage any communicable disease;
- e. Failure to prevent, contain, eradicate or avert any communicable disease; or
- f. Failure to report any communicable disease to authorities.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the “bodily injury”, “property damage”, “personal and advertising injury” or any other loss, cost, or expense.

For purposes of this endorsement, and for greater clarity, communicable disease means any disease, virus, bacteria, or contagion, any derivative, mutation or variation of the disease, virus, bacteria or contagion, which includes, but is not limited to:

1. Coronavirus disease (COVID-19)
2. Severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2)
3. Ebola
4. Avian Influenza (Avian Bird Flu); and
5. Legionella
6. Middle East Respiratory Syndrome (MERS)
7. Tuberculosis

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### ASBESTOS EXCLUSION

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to:

#### **Asbestos**

1. "Bodily injury" or "personal and advertising injury" arising, in whole or in part, out of the actual alleged, threatened or suspected inhalation of, ingestion of, absorption of, contact with, exposure to, existence, manufacture, mining, processing, installation, handling, testing, ownership, sale, resale, abatement, removal, transportation, storage, disposal or presence of, asbestos in any form or asbestos fibers.
2. "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence, manufacture, mining, processing, installation, handling, testing, ownership, sale, resale, abatement, removal, transportation, storage, disposal of or presence of, asbestos in any form or asbestos fibers.
3. Any damages, loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, encapsulating, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, asbestos in any form or asbestos fibers, by any insured or by any other person or entity.
4. Any claim or "suit" by or on behalf of a governmental authority for damages, loss, cost or expense arising, in whole or in part, out of abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, asbestos in any form or asbestos fibers, by any insured or by any other person or entity.
5. Damage to, loss of use of, or reduction in value of a building or any property due to the actual or alleged presence of asbestos or asbestos fibers.
6. The providing of or failing to provide warnings or instructions concerning asbestos in any form or asbestos fibers.
7. Warranties or representations made at any time with respect to or concerning asbestos in any form or asbestos fibers.
8. Any device or product that is designed or used to protect any person or organization from exposure to, inhalation of, or ingestion of asbestos in any form or asbestos fibers.

This exclusion shall apply without regard to the source or sources of asbestos, or the basis of the insured's liability. This exclusion includes defects or negligence in design, construction or materials, or any other event, conduct or misconduct, which may have or is claimed to have precipitated, caused, or acted jointly, concurrently, or in any sequence with asbestos in any form or asbestos fibers in causing injury or damage.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### LEAD AND SILICA EXCLUSION

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

- A.** The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to:

1. "Bodily injury" or "personal and advertising injury" arising, in whole or in part, out of the actual alleged, threatened or suspected inhalation of, ingestion of, absorption of, contact with, exposure to, or exposure to, existence, manufacture, mining, processing, installation, handling, testing, ownership, sale, resale, abatement, removal, transportation, storage, disposal, existence, or presence of, lead or silica in any form.
2. "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence of, the manufacture, mining, processing, installation, handling, testing, ownership, sale, resale, abatement, removal, transportation, storage, disposal, or presence of, lead or silica in any form.
3. Any damages, loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, encapsulating, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, lead or silica in any form, by any insured or by any other person or entity.
4. Any claim or "suit" by or on behalf of a governmental authority for damages, loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, lead or silica in any form, by any insured or by any other person or entity.
5. Damage to, loss of use of, or reduction in value of a building or any property due to the actual or alleged presence of lead or silica.
6. The providing of or failing to provide warnings, instructions concerning lead or silica in any form.
7. Warranties or representations made at any time with respect to or concerning lead or silica in any form.
8. Any device or product that is designed or used to protect any person or organization from exposure to, inhalation of, or ingestion of lead or silica in any form.

This exclusion applies:

1. Without regard to the source or sources of lead, or the basis of the insured's liability.
2. To defects or negligence in design, construction or materials, or any other event, conduct or misconduct, which may have or is claimed to have precipitated, caused, or acted jointly, concurrently, or in any sequence with lead in any form in causing injury or damage.

This exclusion does not apply if :

3. Silica is used solely in the form of silica gels or dusts for the treatment of fleas, bed bug services, and similar pests;
4. Silica is used according to "Integrated Pest Management" (IPM) principles and policies; and
5. Silica is specifically listed in the Declarations as an exposure under Schedule of Locations, Coverage Descriptions, and Receipts.

## COMMERCIAL GENERAL LIABILITY

**B.** The following definition is added to **SECTION IV – DEFINITIONS**:

“Integrated Pest Management” means a sustainable approach to managing pests by combining biological, cultural, physical, and chemical tools in a way that minimizes economic, health, and environmental risks.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EXCLUSION – PUNITIVE DAMAGES**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and to paragraph 2. **Exclusions** of **SECTION I – COVERAGES, COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to:

### **Punitive Damages**

1. Punitive or exemplary damages;
2. Fines;
3. Penalties;
4. Treble damages; or
5. Multiplied or multiple damages

alleged against or imposed on any insured.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EMPLOYER'S LIABILITY AMENDATORY ENDORSEMENT**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

This endorsement applies only with respect to any Additional Insured added to this policy or any liability assumed under an "insured contract".

- A.** For purposes of this endorsement only, paragraph **2. Exclusions**, Subparagraph **e. Employer's Liability** of **SECTION I, COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** is replaced by the following:

This insurance does not apply to:

**e. Employer's Liability**

"Bodily injury" or "property damage" to:

- (1)** An "employee" of any insured arising out of and in the course of:
  - (a)** Employment by any insured; or
  - (b)** Performing duties in connection with any insured's business;
- (2)** The spouse, domestic partner, child, parent, brother, or sister of that "employee" as a consequence of paragraph **(1)** above.
- (3)** Any contractor or subcontractor, or any "employee" of any contractor or subcontractor arising out of or in the course of the rendering or performing of services of any kind or nature by such independent contractor, contractor, subcontractor or any "employee" of any contractor or subcontractor for which any insured may be liable in any capacity.

This exclusion applies:

- (a)** Whether any insured may be liable as an employer or in any other capacity;
- (b)** To any obligation to share damages with or repay someone else who must pay damages because of the injury;
- (c)** To liability assumed by the insured under an "insured contract"; and

- B.** For purposes of this endorsement only, paragraph **5. "Employee"** of **SECTION V – DEFINITIONS** is replaced by the following:

- 5.** "Employee" includes a "leased worker", a "temporary worker", a casual worker, a "volunteer worker", and any person paid on a 1099 basis, but only while performing duties related to the conduct of your business.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**DRY HEAT SERVICES ENDORSEMENT**

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE PART**

This Endorsement shall not serve to increase the limits of insurance as described in **SECTION III - LIMITS OF INSURANCE**.

**A.** The following is added to **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**. Coverage for pest control and termite services shall only apply under the following conditions:

1. Direct Dry Heat Pest Control Services (43470) and Subcontracted Dry Heat Pest Control Services (43470) and Direct and Subcontracted Termite Services (43479) **ARE** listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS PAGE- Coverage Classes and Receipts; and
2. Dry Heat Services (in House/Direct) or Subcontracted Services (Dry Heat Services) **ARE** listed on the PEST CONTROL OPERATOR GENERAL LIABILITY APPLICATION; and
3. A “dry heat” written customer contract between the Named Insured and the customer must be completed (dated, signed by all parties) before any services begin; and
4. The “dry heat” customer contract language must be approved by employees with the insurance carrier or approved employees for the Pest Control Program Administrator that are approved by the insurance carrier; and
5. If a “dry heat” customer contract has not been completed or the bed bug contract language not approved by the carrier or the Program Administrator for the carrier, there will be no coverage or a duty to defend any “claim”, “suit” or to pay damages under the terms of this policy.

**B.** For the purposes of the coverage provided by this endorsement only, the following definitions are added:

1. “Dry Heat” means the introduction of wind into a structure or other containers. The wind is heated from various power sources to eradicate certain target insects such as general pests, bed bugs, termites, wood destroying insects and other target pests. These services must be listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS PAGE - Coverage Classes and Receipts and the PEST CONTROL OPERATOR GENERAL LIABILITY APPLICATION.
2. “Heat fumigation” means the application, inspection, or services by “dry heat” inside a building or structure with the usage of a tarp to enclose or encapsulate the entire building or structure at the time of service performed by the insured or subcontracted to another company by the insured.

**C.** For purposes of the coverage provided by this endorsement only, the following exclusion is added:

1. This insurance does not apply to “Bodily Injury” or “Property Damage” arising out of “Heat Fumigation”.

**IF THE ABOVE-MENTIONED DIRECT DRY HEAT SERVICES AND/OR SUBCONTRACTED DRY HEAT SERVICES ARE *NOT* LISTED ON THE COMMERCIAL GENERAL LIABILITY DECLARATIONS PAGE AND THE PEST CONTROL OPERATOR GENERAL LIABILITY APPLICATION, THERE WILL NOT BE COVERAGE OR A DUTY TO DEFEND UNDER THE TERMS OF THIS POLICY.**

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**BED BUG ENDORSEMENT**

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE PART**

**A. The following is added to SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS:**

Coverage for “Bed Bug” pest control services shall only apply under the following conditions:

1. Direct “Bed Bug” Pest Control Services (43470) or Subcontracted “Bed Bug” Pest Control Services (43470) are listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS - Schedule of Locations, Coverage Descriptions, and Receipts;
- 2.. A “Bed Bug” written customer contract between the Named Insured and the customer has been completed (dated, signed by all parties) before any services begin and is kept on file with the insured; and
3. The “Bed Bug” written customer contract language must be approved in writing by us, or the LIPCA Pest Control Program Administrator,

or there will be no coverage or duty to defend any “claim”, “suit” or to pay damages under the terms of this policy;

**B. For the purpose of the coverage provided by this endorsement only, the following definition is added to SECTION V – DEFINITIONS:**

“Bed Bug” means insects of the Cimicidae family known as Cimex lectularius and Cimex hemipterus, that feed on the blood primarily of human beings.

This Endorsement shall not serve to increase the limits of insurance as described in **SECTION III - LIMITS OF INSURANCE.**

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**TERMITE AND WOOD DESTROYING INSECT AND ORGANISM TREATMENT ENDORSEMENT  
- COMPLETED OPERATIONS COVERAGE**

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE PART**

**A. COVERAGE UNDER THIS ENDORSEMENT ONLY APPLIES IF:**

Termite Services (43479) ARE listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS - Schedule of Locations, Coverage Classes, and Receipts (page 2).

**IF THE ABOVE MENTIONED TERMITE SERVICES ARE NOT LISTED ON THE COMMERCIAL GENERAL LIABILITY DECLARATIONS PAGE THERE WILL NOT BE COVERAGE UNDER THE TERMS OF THIS POLICY.**

**B. The following is added to SECTION I - COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE and SECTION I - COVERAGE B – PERSONAL AND ADVERTISING INJURY:.**

This insurance applies to any claim, "suit", "occurrence" or any other cause of action for "bodily injury", "property damage" or "personal and advertising injury" arising out of "Termite Services".

**C. The following definitions are added to SECTION V – DEFINITIONS:**

**a. "Termite Services" means:**

- (1)** The treatment or retreatment conducted away from "real property" owned, leased, rented or occupied by the Named Insured on which any insured or any contractors or subcontractors are working directly or indirectly on any insured's behalf. Treatment or retreatment includes the usage of liquids, baits or other products that meet all federal, state or local government having jurisdiction.
- (2)** Treatment includes the eradication for Subterranean Termites, Dry wood Termites, Old House Borers, Wood Boring Beetles, Powder Post Beetles and other insects or wood destroying organisms identified and listed on the "treatment contract".
- (3)** The "treatment contract" may include spot or partial treatments, if in accordance with all federal, state or local government having jurisdiction over such treatments.
- (4)** The issuance of a "treatment contract".

**b. "Real property" means buildings and structures listed on the "treatment contract".**

**c. "Treatment contract" means a written contract between you and your customer, that is issued by you and a treatment or retreatment has occurred. The "treatment contract" must include a fee for your services, a graph or diagram and other documents that must be obtained to meet all federal, state or local government having jurisdiction.**

**NOTHING IN THE "TREATMENT CONTRACT" SHALL EXTEND OR BROADEN THE SCOPE OF COVERAGE AFFORDED BY THIS ENDORSEMENT.**

This endorsement shall not serve to increase our limits of insurance as described in **SECTION III - LIMITS OF INSURANCE.**

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

## **ADDITIONAL EXCLUSIONS**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

- A.** The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I - COVERAGE A- BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I - COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to damages claimed for any loss, cost or expense incurred by you, your “employees”, subcontractors, or anyone working on your behalf arising out of the following activities:

1. “Crop spraying”;
2. “Aerial spraying”;
3. Care, use of and treatment of pets, farm animals or zoo animals;
4. Use of “thermal foggers”;
5. Any application, inspection or other services involving removal of snow or ice;
6. Any use of “firearms”; and
7. “Heat fumigation”.

- B.** The following definitions are added to **SECTION V – DEFINITIONS**:

1. “Crop spraying” means any application, inspection or services provided by any insured for any agricultural products.
2. “Aerial spraying” means any application, inspection or services provided by any insured from the air
3. “Thermal foggers” means the application of an insecticide combined with a petroleum base product used for the eradication of mosquitoes and other similar insects. ULV foggers are not “thermal foggers”.
4. “Heat fumigation” means the application, inspection or services by dry heat inside a building or structure with the usage of a tarp to enclose or encapsulate the entire building or structure at the time of service performed by the insured or subcontracted to another company by the insured.
5. “Firearms” means a weapon that acts from a gunpowder explosion or chemical explosive.

**All other terms, conditions and exclusions under the policy are applicable to this Endorsement and remain unchanged.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

## **ASSAULT, BATTERY, HARASSMENT, STALKING OR VIOLENT ACTS EXCLUSION**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

- A.** The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I - COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I, COVERAGE B – PERSONAL AND ADVERTISING INJURY**:

This insurance does not apply to "bodily injury" "property damage" or "personal and advertising injury" or emotional distress, or for loss of society, services, consortium or income, reimbursement for expenses (including but not limited to medical expenses, hospital expenses and wages) paid or incurred by such other person, firm or organization, or any obligation to share damages with or to repay someone who must pay damages arising out of, resulting from, or in connection with:

1. Actual or alleged "assault" or "battery";
2. Actual or alleged "harassment";
3. Actual or alleged "stalking";
4. Actual or alleged "violent acts";
5. False arrest, false detention or false imprisonment, where such false arrest, false detention or false imprisonment is connected to, or arises in the sequence of events related to, actual or alleged "assault" or "battery", "harassment", "stalking", or "violent acts".

This exclusion applies:

- a. Whether the acts are alleged to be caused or committed by, at the instruction or direction of, or arising out of the negligence of, the insured, its officers, "employees", agents or servants, or by any other person lawfully or otherwise, on, at or near, or away from any premises owned or occupied by the insured, or by any other person;
- b. The alleged failure or fault to provide an environment safe from "assault", "battery", "harassment", "stalking", or "violent acts" of the insured, its officers, "employees", agents or servants, in the hiring, supervision, retention or control of any person, whether or not an officer, "employee", agent or servant of the insured;
- c. The alleged failure or fault of the insured, or its officers, "employees", agents or servants, to warn, train or supervise, prevent or to attempt to prevent, bar or halt any such conduct; and
- d. To any claim or "suit" by any other person, firm or organization, asserting rights derived therefrom.

This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

- B.** The following definitions are added to **SECTION V – DEFINITIONS**:

2. "Assault" means any threatened harmful or offensive contact, whether through words or deeds, between two or more persons, whether or not caused or committed by or at the instruction of, or at the direction of, or arising out of the negligence of you, any insured or any legal entity, or out of any other cause, regardless of fault or intent. "Assault" includes any threatened sexual abuse, sexual assault, sexual harassment, intimidation, and verbal abuse.
2. "Battery" means harmful or offensive contact between two or more persons, whether or not caused by or committed by or at the instructions of, or at the direction of, or arising out of the negligence of, you, any insured, any legal entity, or any causes whatsoever, regardless of fault or intent. "Battery" includes sexual abuse, sexual battery, sexual molestation and physical altercation.
3. "Harassment" means words, conduct, or actions directed at a specific person that annoys, alarms, or causes emotional distress, and any unwanted behavior, whether physical or verbal that would make a reasonable person feel uncomfortable, humiliated or mentally distressed.

4. "Stalking" means a willful and persistent and continuing course of conduct or actions by a person with the intent to maintain contact with or exercise power over and control over another person, involving repeated or continuing harassment made against the expressed wishes of another individual, which causes that individual to feel fear, loss of control, emotional distress intimidation or apprehension.
5. "Violent acts" means an act of violence, physical abuse, or a turbulent state by an individual causing "bodily injury" or "property damage", an offense that has an element the use, attempted use, or threatened use of physical force against the person or property of another; or, any other offense that is a felony and that, by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**EMPLOYMENT- RELATED PRACTICES EXCLUSION**

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE PART**

The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and Paragraph 2. **Exclusions** of **SECTION I – COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to “bodily injury”, “property damage”, or “personal and advertising injury” to:

1. A person arising out of any:
  - a. Refusal to employ that person;
  - b. Termination of that person’s employment;
  - c. Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, slander, humiliation, discrimination or malicious prosecution directed at that person;
  - d. Claims or “suits” for abuse or process or allegations of theft or wrongdoing made by any insured or ‘employee’;
  - e. claims or “suits” involving non-competition agreements;
  - f. claims or “suits” involving customer lists or alleged illegal contact of customers; or
  - g. claims or “suits” involving workers compensation and similar laws or employers liability as stated in this endorsement or any part of the policy.
2. The spouse, child, parent, brother or sister of that person as a consequence of “bodily injury” to that person at whom any of the employment-related practices described in paragraphs **a., b., c., d., e., f.,** or **g.** above is directed.

This exclusion applies:

1. Whether the injury-causing event described in paragraphs **a., b., c., d., e., f.,** or **g.** above occurs before, during or after employment of that person;
2. Whether the insured may be liable as an employer or in any other capacity; and
3. To any obligation to share damages with or repay someone else who must pay damages because of the injury.

**All other terms, conditions and exclusions under the policy are applicable to this Endorsement and remain unchanged.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### DEDUCTIBLE ENDORSEMENT

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A. The following conditions are added to SECTION IV-COMMERCIAL GENERAL LIABILITY CONDITIONS:.**

1. Our obligation to pay damages on your behalf applies only to the amount of damages in excess of any applicable deductible amounts stated in the Declarations.
2. The insured is obligated first for damages or "claim related costs" in accordance with **SECTION IV - COMMERCIAL GENERAL LIABILITY CONDITIONS**.
3. The deductible amount applies on a **PER "OCCURRENCE" BASIS**, to all damages as the result of any one "occurrence", regardless of the number of persons or organizations who sustain damages because of that "occurrence". There will be no prorating or sharing of a deductible with any other insurer on any claim or "suit".
4. The terms of this insurance, including those with respect to:
  - a. Our right and duty to defend the insured against any "suits" seeking damages; and
  - b. The insured's duties in the event of an "occurrence", claim or "suit" apply irrespective of the application of the deductible amount.
5. We may, at our discretion, set up a claim file for anticipated claim payments to effect settlement of any claim or "suit" or claim-related costs.
6. After we have settled the claim, we shall bill the Named Insured who shall "promptly deposit with us" the entire deductible obligation. "Promptly deposit with us" means payment must reach us by the due date of the deductible payment due notice is mailed to the Named Insured. Such due date will be 45 days after the date of such notice.
7. We may cancel the policy, for non-payment of premium, if the insured fails to promptly the deductible with us. Any part of the deductible that is not expended for damages will be refunded to the insured.

**B. The following definition is added to SECTION V – DEFINITIONS:**

1. "Claim related costs" means all the costs and expenses associated with the handling, defense, or settlement of any claim or "suit", including, attorneys' fees, court costs, arbitration or mediation costs or expenses, expert witness fees, investigative fees, adjustment fees and any other claim or "suit" related costs or expenses.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

**PESTICIDE APPLICATOR COVERAGE AMENDATORY ENDORSEMENT  
(CARE, CUSTODY AND CONTROL)**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**SCHEDULE**

|    |                                                                   |
|----|-------------------------------------------------------------------|
| 1. | Structural pesticide/wood destroying insect or organism services; |
| 2. | Fumigation                                                        |
| 3. | Lawn and Ornamental Plant Treatment                               |
| 4. | Mosquito Abatement without the use of Thermal Foggers             |
| 5. | Wildlife Control                                                  |

**A.** Only with respect to the operations specified in the Schedule above, the following is added to exclusion **f.** of Paragraph **2. Exclusions** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**. This insurance does not apply to:

**(1)** “Bodily injury” or “property damage” arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of “pollutants” into or upon land, the atmosphere or any watercourse or body of water, unless:

**(a)** Such actual, alleged or threatened discharge, dispersal, release or escape is “sudden and accidental”; and

**(b)** The “bodily injury” or “property damage” occurs away from property owned, leased, rented or occupied by the Named Insured, on which any insured or any contractors or subcontractors working directly or indirectly on any insured’s behalf, are performing the operations described in the Schedule above.

However, there is no coverage for “bodily injury” or “property damage” arising at:

**(i)** A waste facility;

**(ii)** Property you own, lease, rent or occupy; or

**(iii)** Premises you sell, give away or abandon.

**B.** For the purpose of the coverage afforded by this endorsement only, **SECTION V – DEFINITIONS** is amended as follows::

**1.** The following is added to Paragraph **15.**:

“Pollutants” includes pesticides, herbicides, or other materials used in the pest control business which are approved for use by the applicable regulatory authorities for pest control and lawn treatment operations.

**2.** The following definition is added:

“Sudden and accidental” means an abrupt, immediate, unplanned, unintended and unexpected discharge, seepage, migration, release or escape of “pollutants”. The abrupt, immediate, unplanned, unintended and unexpected discharge, dispersal, seepage, migration, release, or escape must be demonstrable as having first commenced at a specific time during the policy period and at a specific place.

This endorsement shall not serve to increase our limits of insurance as described in **SECTION III - LIMITS OF INSURANCE**.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

# COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

## **ANTI-STACKING CONDITION**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

The following condition is added to **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**:

This policy cannot be stacked with other policies issued to the insured by “us” which means that regardless of the number of years this policy has been, or shall continue to be, in force, and the number of premiums which have been paid, or shall be payable, the occurrence and aggregate limits of insurance as described in **SECTION III – LIMITS OF INSURANCE** and listed in the Declarations of this policy, with respect to any claim or claims, shall not be cumulative from policy period to policy period.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

### **LIMITING EXCLUSION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

#### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

The following exclusions are added to paragraph 2. **Exclusions** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE** and **COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to:

1. The purchase, sale or distribution of securities, or investment counseling or management services;
2. Antitrust, unfair competition, restraint of trade or bad faith;
3. Unlawful, unfair, deceptive or fraudulent acts, or breach of any fiduciary duty;
4. Intentionally or grossly negligent tortious conduct;
5. The development, transfer or sale of real estate, or any defect in or impairment of title to real property, including fixtures;
6. "Employee", officer or director dishonesty;
7. Breach of or failure to perform any contract or agreement;
8. Infringement of trade names, software or similar rights; and
9. Building inspection or appraisal services; or
10. Rendering services or opinions regarding structural integrity, chemical, air quality or health-related mold issues.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### **CLAIM RELATED COSTS ENDORSEMENT**

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

- A.** The following is added to paragraph 1.a. of **SUPPLEMENTARY PAYMENTS – COVERAGES A AND B** :

All expenses we incur includes all "claim related costs". This shall not serve to increase our limits of insurance as described in **SECTION III – LIMITS OF INSURANCE**.

- B.** The following is added to **SECTION III – LIMITS OF INSURANCE**:

"Claim related costs" will be exclusive (outside) of the policy limits, unless stated otherwise in any endorsement attaching to this policy.

- C.** The following definition is added to **SECTION V – DEFINITIONS**:

"Claim related costs" means all costs and expenses associated with the handling, defense or settlement of any claim or "suit", including, attorneys' fees, court costs, arbitration or mediation costs or expenses, expert witness fees, investigative fees, adjustment fees and any other claim or "suit" related costs or expenses.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### **ADDITIONAL INSURED (INCLUDING COMPLETED OPERATIONS) AUTOMATIC STATUS WHEN REQUIRED IN WRITTEN AGREEMENT WITH YOU**

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A. SECTION II – WHO IS AN INSURED** is amended to include as an additional insured any person or organization for whom you are performing operations when you and such person or organization have agreed in writing in a contract or agreement that such person or organization be added as an additional insured on your policy. Such person or organization is an additional insured only with respect to liability for:

1. "Bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:
  - a. Your acts or omissions; or
  - b. The acts or omissions of those acting on your behalf in the performance of your ongoing operations for that additional insured; and
2. "Bodily injury" or "property damage" included in the "products-completed operations hazard" with respect to "your work" performed for that additional insured .

**B.** Only with respect to the insurance afforded to any additional insureds by this endorsement, paragraph **4. Other Insurance**, subparagraph **a. Primary Insurance** of **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS** is deleted and replaced with the following:

This insurance shall be considered primary if any other valid and collectible insurance is available to any person or organization included as an additional insured under this endorsement and such other insurance shall be excess of and will not contribute to the insurance afforded by this endorsement.

**C.** Only with respect to the insurance afforded to any additional insureds by this endorsement, paragraph **8. Transfer Of Rights of Recovery Against Others To Us**, of **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS** is replaced by the following:

We will waive any right of recovery we may have against any person or organization added as an additional insured under the terms of this endorsement against whom you have agreed to waive such right of recovery in a written contract or agreement because of payments we make for "bodily injury" or "property damage" arising out of your ongoing operations or "your work" included within the "products-completed operations hazard" done under a contract or agreement with that person or organization.

The insurance provided by this endorsement shall not serve to increase our limits of insurance as described in **SECTION III - LIMITS OF INSURANCE**.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

## **STRUCTURAL INSPECTION AND APPRAISAL EXCLUSION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

- A.** The following exclusion is added to paragraph 2. **Exclusions** of **SECTION I - COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions** of **SECTION I - COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**:

This insurance does not apply to “bodily injury”, “property damage” or “personal and advertising injury” arising out of the rendering of or failure to render any “structural inspections and appraisals” by or for the insured.

This exclusion does not apply to “bodily injury” or “property damage” resulting from an inspection and included in the “written report” attesting to the presence or absence of termites, or wood destroying insects or organisms and the presence or absence of damage caused by termites or wood destroying insects or organisms, if the sole purpose of the inspection and “written report” is for the sale or refinancing of property or structures, and the “written report” contains the following information:

1. The address and location of the property and its structure(s) inspected;
2. The date of the inspection; and
3. The name of the inspector who performed the inspection.

- B.** The following definition is added to **SECTION V – Definitions**:

“Structural inspections and appraisals” means:

1. The preparing, approving, recommending or failing to prepare, approve or recommend maps, drawings, opinions, reports, surveys, change orders, designs, specifications, or hazard assessment plans;
2. Supervisory, inspection, training or engineering services;
3. Commercial or industrial hygiene, air monitoring, testing, sampling, laboratory analysis, public health, legal, accounting, architectural, medical, nursing, data processing, consulting or investment advisory services;
4. Building inspections or appraisals including, but not limited to, structural integrity, plumbing, electrical or foundation comments or reports; or
5. Chemical testing of any kind.

“Written report” means:

A document attesting to the presence or absence of termites, wood destroying insects or organisms and the presence or absence of damage caused by termites, wood destroying insects or organisms.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **AUTO TRANSIT POLLUTION COVERAGE ENDORSEMENT**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

- A.** Under paragraph 2. **Exclusions**, subparagraphs **f. Pollution (1) (c) and (2)** and Subparagraph **g. Aircraft, Auto Or Watercraft** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE** do not apply to:

“Bodily injury” or “property damage” arising out of the “sudden and accidental” discharge, dispersal, seepage, migration, release or escape of “pollutants” caused by or resulting from the “loading or unloading” or transporting of “pollutants”, provided that:

1. The release occurs while “pollutants” are being transported or towed by, stored in or upon an “auto”, or treated or processed in or upon an “auto”, or handled for movement into, onto, or from an “auto” owned or operated by, or rented or loaned to the insured, an “employee”, subcontractor or any other person acting on behalf of the insured;
2. The operations comply with any federal, state or local government requirements which apply to the transportation of “pollutants”.

However, this exception to Exclusion **f. (1) (c) and (2)** does not apply to:

1. “Pollutants” before the insured has physically acquired such materials; or
2. “Pollutants” after such materials are transferred from an “auto” or “mobile equipment” and delivered, disposed of, or abandoned by the insured.

- B.** For the purposes of this endorsement only, paragraph 4. **Other Insurance** of **SECTION IV - CONDITIONS** is deleted and replaced by the following:

**4. Other Insurance**

If other valid and collectible insurance is available to the insured for a loss under this coverage this insurance will be excess over any other insurance. We will also have no duty to defend any claim or “suit” if the other insurer has the duty to defend. If no other insurer defends, we will undertake to do so, but we will be entitled to the insured’s rights against all those other insurers.

- C.** Only with respect to the coverage afforded by this endorsement, **SECTION V – DEFINITIONS** is amended as follows::

1. The following is added to paragraph 15. **Pollutants**:

“Pollutants” includes pesticides, herbicides, or other materials used in the pest control business which are approved for use by the applicable regulatory authorities for pest control and lawn treatment operations.

2. The following definition is added:

“Sudden and accidental” means an abrupt, immediate, unplanned, unintended and unexpected discharge, seepage, migration, release or escape of “pollutants”. The abrupt, immediate, unplanned, unintended and unexpected discharge, dispersal, seepage, migration, release, or escape must be demonstrable as having first commenced at a specific time during the policy period and at a specific place.

This insurance shall not serve to increase our Limits of Insurance as described in **SECTION III - LIMITS OF INSURANCE**

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

### **PRE-EXISTING BODILY INJURY, PROPERTY DAMAGE OR PERSONAL AND ADVERTISING INJURY EXCLUSION**

This endorsement modifies the insurance provided under the following:

#### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

The following exclusion is added to paragraph 2. **Exclusions of SECTION I - COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and paragraph 2. **Exclusions of SECTION I - COVERAGE B – PERSONAL AND ADVERTISING INJURY**:

This insurance does not apply to:

1. "Bodily injury," "property damage," or "personal and advertising injury" including continuous, ongoing, progressive or repeated "bodily injury," "property damage," or "personal and advertising injury" that first occurs, in whole or in part, prior to the effective date of the policy period, whether or not it occurs during the policy period;
2. Any damages arising out of or relating to "bodily injury", "property damage" or "personal and advertising injury" which are known to any officer or "employee" of any insured, which are in the process of settlement, adjustment or "suit" prior to or at the inception date of this policy, if any.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### REGULATORY ACTION ENDORSEMENT

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following condition is added to **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**:

This insurance does not apply if:

1. The license(s) or certification(s) of the Named Insured is suspended or revoked by the governing regulatory agency or agencies in the states where the insured is doing business.
2. The Named Insured performs inspections, treatments or other services for which they do not have the necessary license or certification as determined by the regulatory agency for the state(s) in which the insured does business.
3. The Named Insured does not notify us within 15 days if they rename or start a new business, or borrow the license or certification of another person or entity.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ CAREFULLY.**

### **COPYRIGHT, PATENT AND NON-COMPETE AGREEMENT EXCLUSION**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following is added to Paragraph 2. Exclusions of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY** and **PROPERTY DAMAGE LIABILITY** and Paragraph 2.(i) **Infringement of Copyright, Patent, Trademark or Trade Secret** of Exclusions of **SECTION B – PERSONAL AND ADVERTISING INJURY LIABILITY** is deleted and replaced as follows:

**This insurance does not apply to:**

Any claim or "suit" or "Personal and advertising injury" based upon or arising from, directly or indirectly, or in any way relating to, any actual or alleged contravention of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement". This exclusion will also apply to non-compete agreements, customer lists, illegal contact of customers or similar actions by any employee, contractor, or subcontractor of the insured.

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**DIRECT AND SUBCONTRACTED FUMIGATION  
ENDORSEMENT**

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE PART**

**A.** Direct and Subcontracted Fumigation Coverage is provided under the following conditions only if:

Direct Fumigation Services (43860) and/or Subcontracted Fumigation Services (43860) utilizing fumigants ARE listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS - Schedule of Locations, Coverage Classes, and Receipts.

**IF THE ABOVE MENTIONED DIRECT FUMIGATION SERVICES AND/OR SUBCONTRACTED FUMIGATION SERVICES ARE *NOT* LISTED IN THE COMMERCIAL GENERAL LIABILITY DECLARATIONS THERE WILL NOT BE COVERAGE UNDER THE TERMS OF THIS POLICY.**

**B.** The following definitions are added to **SECTION V – DEFINITIONS**:

1. "Fumigation" means the action of releasing a toxic chemical in a gaseous state in a contained area for the control of a target pest, whether performed directly by the insured or subcontracted to another fumigation company by the insured.
2. "Fumigant" means a chemical or product properly labeled and approved by the proper federal and state agencies and which, at the required temperature and pressure, exists in a gaseous state in sufficient concentrations to be lethal to a target pest.

**C.** The following is added to **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS**:

If the insured sells or subcontracts "fumigation" services to another "fumigation company", Direct and Subcontracted Fumigation Coverage shall only apply if a Certificate of Insurance is provided to the insured by the "fumigation" company prior to the start of work.

This endorsement shall not serve to increase our limits of insurance as described in **SECTION III – LIMITS OF INSURANCE**.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

## COMMERCIAL GENERAL LIABILITY

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

### **WOOD DESTROYING INSECT AND ORGANISM REAL ESTATE INSPECTION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

#### COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. Coverage under this endorsement only applies if:

Real Estate Inspections (Wood Destroying Insect/Organism "WDI/O") (43479) and Inspections Without Treatment (Wood Destroying Insect/Organism Reports) ARE listed on the COMMERCIAL GENERAL LIABILITY DECLARATIONS – Schedule of Locations, Coverage Descriptions and Receipts (page 2).

**IF THE ABOVE MENTIONED REAL ESTATE INSPECTIONS (WDI/O) AND/OR INSPECTIONS WITHOUT TREATMENT (WOOD DESTROYING INSECT/ORGANISM REPORTS) ARE NOT LISTED IN THE COMMERCIAL GENERAL LIABILITY DECLARATIONS THERE WILL NOT BE COVERAGE UNDER THE TERMS OF THIS POLICY.**

B. The following is added to **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:

This insurance applies to "bodily injury" or "property damage" as disclosed and described upon the issuance of a "written report". A "written report" is defined as a document attesting to the presence or absence of termites, wood destroying insects or organisms and the presence or absence of damage caused by termites, wood destroying insects or organisms. The sole purpose of the inspection and "written report" is the sale or refinancing of property or structures. The following conditions must be met for coverage to apply:

1. The inspection and "written report" must have been completed during the policy period;
2. A claim for damages of "property damage" or "bodily injury" is made in writing to "us"; and
3. The "written report" must contain the following information:
  - a. The address and location of the property and its structure(s) inspected;
  - b. The date of the inspection; and
  - c. The name of the inspector who performed the inspection.

Nothing in the written report shall extend to broaden the scope of coverage afforded by this endorsement.

This endorsement shall not serve to increase our limits of insurance as described in **SECTION III – LIMITS OF INSURANCE**.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **ERRORS AND OMISSIONS LIABILITY ENDORSEMENT**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

### **SCHEDULE**

#### **Covered Operation(s):**

Pest, termite, lawn or other services as listed in the COMMERCIAL GENERAL LIABILITY DECLARATIONS - Schedule of Locations, Coverage Description, and Receipts.

Except as modified by this endorsement, all provisions under the Commercial General Liability Coverage Part apply.

**A. SECTION I – COVERAGES** is amended as follows:

**1.** The following is added:

**ERRORS AND OMISSIONS LIABILITY  
COVERAGE:**

**Insuring Agreement**

We will pay those sums that the insured becomes legally obligated to pay as compensatory damages because of a negligent act, error or omission.

This insurance applies only if the negligent act, error or omission:

- a.** Is committed during the policy period in the course of your Covered Operation(s) designated in the Schedule above, whether committed by you or by any person for whom you are legally responsible;
- b.** Results in a "loss" which occurs during the policy period; and

**c.** Takes place in the "coverage territory".

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under an applicable Supplementary Payments provision of this Coverage Part.

**2. Exclusions**

For the purposes of insurance provided by this endorsement:

- a.** The exclusions in the Commercial General Liability Coverage Form, and in all the endorsements, that apply to "bodily injury", "property damage" or "personal and advertising injury" also apply to "loss".
- b.** Paragraphs **b. Contractual Liability** and **e. Employer's Liability of COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE** are deleted and replaced by the following:

This insurance does not apply to:

**b. Contractual Liability**

Damages which the insured is obligated to pay by reason of the assumption of liability in a contract or agreement.

This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

Solely for the purposes of liability assumed in an "insured contract", reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages.

**e. Employer's Liability**

Any claim or "suit" arising out of injury or damage for "loss" to:

- (1) An "employee", "executive officer", partner, director or officer of the insured arising out of and in the course of:
  - (a) Employment by the insured; or
  - (b) Performing duties related to the conduct of the insured's business; or
- (2) The spouse, child, parent, brother or sister of that "employee", "executive officer", partner, director or officer as a consequence of Paragraph (1) above.

This exclusion applies:

- (1) Whether the insured may be liable as an employer or in any other capacity; and
- (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

**c. The following additional exclusions apply:**

This insurance does not apply to:

**(1) Theft**

Any claim or "suit" arising out of actual or alleged theft including any actual or alleged inventory shortage or inventory shrinkage.

**(2) Claims or "Suits" Between Insureds**

Any claim or "suit" made against an insured by an entity:

- (a) Which is operated, managed or controlled by any insured;
- (b) In which the insured has a collective ownership interest in excess of 50%;
- (c) In which any insured is an officer or director; or
- (d) Which wholly or partly owns, operates or manages any insured.

**(3) Warranty or Guaranty**

- (a) Any expressed or implied warranties or guarantees; or
- (b) Any cost or other estimates for construction, renovation, removal or demolition being exceeded or inaccurate.

**(4) ERISA**

Any violation of:

- (a) The Employee Retirement Income Security Act of 1974, or any amendments or successors thereof; or
- (b) Federal, state or local statutory or common law similar to the Employee Retirement Security Act of 1974;

including any rules, regulations or orders promulgated there under.

**(5) Statutory or Regulatory Liability**

Any actual or alleged liability imposed by any federal, state, local or other governmental statute or rule, regulation or order.

**(6) Securities Violation**

Any claim or "suit" based upon, as a consequence of or arising out of a violation of the Securities Act of 1933, as amended by the Securities Exchange Act of 1934, as amended by any state Blue Sky or securities law or similar state or federal statute and any rule, regulation or order issued pursuant to any of the foregoing statutes.

**(7) Antitrust Laws**

Any actual or alleged violation of federal or state anti-trust or similar laws or any rules, regulations or orders promulgated thereunder.

**(8) Other Enterprises**

Any act, error or omission by any business enterprise or organization including its officer, director, partner, manager, trustee, "employee", or temporary workers of such organization that is not named in the Declarations for this coverage.

**(9) Injunctive Relief**

Any demand or order for injunctive relief.

**(10) Punitive Damages, Fines or Penalties**

Punitive damages, exemplary damages, multiplied damages, fines or penalties.

**(11) Medical or Health Care Service**

Any claim or "suit" arising out of providing or failure to provide any medical, health care, or emergency medical service.

**(12) Other Services**

Any claim or "suit" that results from any act, error or omission in rendering or failing to render any services other than those related to your Covered Operation(s) designated in the Schedule above.

**(13) Continuation of Previously "Manifested" Acts, Errors or Omissions**

Any act, error or omission which "manifested" prior to the beginning of the policy period regardless of whether:

- (a)** There is a "continuation" of such act, error or omission during the policy period; or
- (b)** The act, error or omission causes new or additional damages during the policy period.

**(14) Prior or Pending Claims or "Suits"**

Any claim or "suit" that results from any act, error or omission:

- (a)** That any insured, prior to the beginning of the policy period, should have reasonably foreseen may give rise to a claim or "suit"; or
- (b)** For which notice of a claim or incident has been provided to any insurer prior to the effective date for this coverage.

**(15) Other Insurance**

Any claim or "suit" based upon, as a consequence of or arising out of an act, error or omission for which any insured is afforded other valid insurance.

**(16) Failure To Complete Specifications**

Any claim or "suit" based upon, as a consequence of or arising out of any failure to complete any drawings, specifications or schedules of specifications in a timely manner or within a prescribed period of time or the failure to act upon shop drawings on time, but this exclusion does not apply if such failure is the result of a negligent act, error or omission in the drawings, specifications, schedules or shop drawings which are not required to be lawfully performed by licensed, registered or certified professionals.

**(17) Licensed, Registered or Certified Professionals**

Any claim or "suit" arising out of or resulting from services which can only be lawfully performed by a licensed, registered or certified Architect or Engineer, Public Accountant, Actuary, Attorney, Healthcare Practitioner, Insurance Agent, Insurance Broker, Financial Consultant, Investment Advisor, Securities Broker or Securities Dealer.

**(18) Bodily Injury, Property Damage or Personal and Advertising Injury**

"Bodily injury", "property damage" or "personal and advertising injury".

- 3. For the purposes of insurance provided by this endorsement, the following is added to **SUPPLEMENTARY PAYMENTS – COVERAGES A AND B:**

This section will apply to claims arising out of your **ERRORS AND OMISSIONS LIABILITY COVERAGE**, however the provisions regarding indemnities of the insured and defense of any such indemnitee shall not apply to your **ERRORS AND OMISSIONS LIABILITY COVERAGE**.

- B.** For the purposes of insurance provided by this endorsement, the following is added to paragraph 4. of **SECTION II – WHO IS AN INSURED:**

- f. ERRORS AND OMISSIONS LIABILITY COVERAGE** does not apply to any act, error or omission that occurred before you acquired or formed the organization.

- C.** For the purposes of insurance provided by this endorsement, the following is added to **SECTION III – LIMITS OF INSURANCE:**

For the purposes of your General Aggregate Limit of Insurance and your Each Occurrence Limit of Insurance, damages under your Errors and Omissions Liability Coverage will be considered damages under Coverage A, however, the Products-Completed Operations Aggregate Limit does not apply to damages covered under your Errors and Omissions Liability Coverage.

- D.** For the purposes of insurance provided by this endorsement, paragraph 4. **Other Insurance** under **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS** is deleted.

- E.** For the purposes of insurance provided by this endorsement, **SECTION V – DEFINITIONS** is amended as follows:

**1.** Paragraph **18.** is replaced by the following:

**18.** "Suit" means a civil proceeding in which "loss" to which this endorsement applies is alleged. "Suit" includes:

- a.** An arbitration proceeding in which such "loss" is claimed and to which the insured must submit or does submit with our consent; or
- b.** Any other alternative dispute resolution proceeding in which such "loss" is claimed and to which the insured submits with our consent.

**2.** The following definitions are added:

- a.** "Continuation" includes any progression, change or resumption.
- b.** "Loss" means injury or damage other than "bodily injury", "property damage" or "personal and advertising injury".
- c.** "Manifested" means the earlier of when damage is known to any insured or is first discovered by any person or organization who suffered such damage.

## COMMERCIAL GENERAL LIABILITY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

### LOST KEY COVERAGE ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

**A. The following is added to **Exclusion 2.j. Damage to Property** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:**

Paragraph **(4)** of this exclusion does not apply to “property damage” due to the loss of keys in the care, custody or control of any Named Insured, any “employee” of the Named Insured, any subcontractor of the Named Insured, or anyone for whom the Named Insured is responsible. However, our liability for all damages because of “property damage” due to the loss of keys will be limited as follows:

- (a)** Actual cost of the lost keys where in physical or electronic form;
- (b)** Cost of adjustment of locks or electronic keypads to accept new keys; and
- (c)** Cost of new locks or electronic keypads, if required, including the cost of their installation.

**B. With respect to the coverage provided by Paragraph **A.** above, this insurance does not apply to any dishonest act by any Named Insured, any “employee” of any Named Insured, any subcontractor, or anyone for whom any Named Insured is responsible.**

**C. The insurance afforded by Paragraph **A.** above is excess over any valid and collectible property insurance (including any deductible) available to the Named Insured, whether primary, excess, contingent or issued on any other basis.**

**ALL OTHER POLICY TERMS AND CONDITIONS REMAIN UNCHANGED.**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**EXPANDED PROPERTY DAMAGE ENDORSEMENT**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

Only with respect to the operations specified in this endorsement, paragraph **2.j. DAMAGE TO PROPERTY**, subparagraphs **(4), (5) and (6)** of **SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, does not apply to property of others for whom you are working, for the sole purpose of performing pest control services, lawn spray operations or other services as shown in the Declarations.

**ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED**

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – SCHEDULED PERSON OR ORGANIZATION**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

### **SCHEDULE**

| Name Of Additional Insured Person(s)<br>Or Organization(s)                                                                                                   | Location(s) Of Covered Operations                                                                       |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|
| ANY PERSON OR ORGANIZATION REQUIRED TO BE NAMED AS AN ADDITIONAL INSURED UNDER A CONTRACT AND EVIDENCED BY CERTIFICATE OR DOCUMENT ON FILE WITH THE COMPANY. | ANY AND ALL LOCATIONS UNDER CONTRACT AND EVIDENCED BY CERTIFICATE OR DOCUMENT ON FILE WITH THE COMPANY. |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations.                                                       |                                                                                                         |

**A. Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

1. Your acts or omissions; or
2. The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B.** With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to "bodily injury" or "property damage" occurring after:

1. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
2. That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

- C. With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or

2. Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART  
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

### **SCHEDULE**

| <b>Name Of Additional Insured Person(s)<br/>Or Organization(s)</b>                                                                                                  | <b>Location And Description Of Completed Operations</b>                                                        |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| <b>ANY PERSON OR ORGANIZATION REQUIRED TO BE NAMED AS AN ADDITIONAL INSURED UNDER A CONTRACT AND EVIDENCED BY CERTIFICATE OR DOCUMENT ON FILE WITH THE COMPANY.</b> | <b>ANY AND ALL LOCATIONS UNDER CONTRACT AND EVIDENCED BY CERTIFICATE OR DOCUMENT ON FILE WITH THE COMPANY.</b> |
| Information required to complete this Schedule, if not shown above, will be shown in the Declarations.                                                              |                                                                                                                |

**A. Section II – Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" at the location designated and described in the Schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard".

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

**B. With respect to the insurance afforded to these additional insureds, the following is added to Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## **EXCLUSION – CROSS SUITS LIABILITY**

This endorsement modifies insurance provided under the following:

### **COMMERCIAL GENERAL LIABILITY COVERAGE PART**

**A. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverages – Coverage A – Bodily Injury And Property Damage Liability:**

This insurance does not apply to:

#### **Cross Suits**

Any claim made or "suit" brought by any Named Insured under this Policy against another Named Insured under this Policy for damages because of "bodily injury" or "property damage".

**B. The following is added to Paragraph 2. Exclusions of Section I – Coverages – Coverage B – Personal And Advertising Injury Liability:**

This insurance does not apply to:

#### **Cross Suits**

Any claim made or "suit" brought by any Named Insured under this Policy against another Named Insured under this Policy for damages because of "personal and advertising injury".

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

**ALABAMA  
SPECIAL POLICY LIMITS AND TERMS ENDORSEMENT**

**This endorsement changes the policy terms and limits for business operations performed in the State of Alabama.**

- A. For Wood Destroying Insect/Organism Reports and Real Estate Inspections on structures located in the State of Alabama, the following policy terms and limits apply:

**\$100,000 per Occurrence  
\$100,000 per Aggregate**

Wood Destroying Insects/Organisms Reports and Real Estate Inspections are defined as: "the inspection and subsequent issuance of a written report attesting to the presence or absence of termites and/or wood destroying insects and/or organisms and the presence or absence of damage caused by termites and/or wood destroying insects and/or organisms, when said inspection and report are made for purposes of an anticipated sale and/or refinancing of the property and/or structures inspected."

- B. If the insured performs services including but not limited to the treatment, renewal inspection, fumigation for wood destroying insects or organisms and other matters surrounding wood destroying insects and organisms in the State of Alabama, the Limits of Liability are as follows:

**\$150,000 per Occurrence  
\$150,000 per Aggregate**

All "claim related costs" are considered inclusive and part of the occurrence and aggregate limits stated on this Endorsement for claims, suits or other causes of actions surrounding "property damage" and "bodily injury" for all services rendered by the insured in the state of Alabama.

"Claim related costs" means all costs and expenses associated with the handling, defense and settlement of any claim or "suit", including, but not limited to, amounts for damages, medical expenses, attorneys' fees, reserves for indemnity or expense, court costs, arbitration or mediation costs or expenses, expert witness fees, investigative fees, adjustment fees and any other claim or "suit" related costs or expenses.

All other terms, conditions and exclusions under the policy are applicable to this Endorsement and remain unchanged.